

State Of Karnataka vs Sayabanna on 4 January, 2020

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IN THE COURT OF THE LIII ADDL.CITY CIVIL &
SESSIONS SPECIAL JUDGE,
BENGALURU

DATED THIS THE 4th DAY OF January 2020

-: PRESENT :-

S.H.PUSHPANJALI DEVI, B.A. LL.B.,
LIII Addl. City Civil & Sessions Special Judge,
Bengaluru.

Spl.CC No. 260 /2013

Complainant : State of Karnataka
By Yelahanka New Town
Police Station,
Bengaluru

[Rep. by Special Public
Prosecutor]

/ Vs /

Accused-: Sayabanna,
S/o Late Ninganna,
Aged about 23 years,
Residing at 428/16,
Near Raghavendra Swamy Temple,
8th Cross Road, 'A' Sector,
Yelahanka New Town,
Bangalore - 560 064.

[Rep. by Mr. A.G.-Advocate]

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TABULATION OF EVENTS

1. Date of Commission Of Offence	:	20/08/2013
2. Date of Report Of Offence	:	21/08/2013
3. Date of Arrest of	:	25/08/2013

Accused
Date of Release on Bail
Accused : 04/02/2014

5 Period undergone in
Judicial Custody by : 5 months 9 days
Accused

6 Name of the Complainant : Sri. B. S. Venkatesh

7. Date of Commencement
of recording evidence : 05/06/2014

8. Date of Closing of
Evidence : 22/07/2019

9. Charges framed : Sections 366, 342, 376 IPC and
5(l) R/w 6 of POCSO Act, 2012.

10. Opinion of the Judge : As per final Order

(S.H.PUSHPANJALI DEVI)
LIII Addl.City Civil & Sessions Special Judge,
Bangalore.

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JUDGMENT

This Charge Sheet is filed by the Police Inspector of Yelahanka New Town Police Station, Bengaluru City, against the Accused for the offences punishable under Section 366A, 342, 376 of IPC and 4 and 6 of POCSO Act, 2012.

2. The brief facts of the case of the Prosecution are that the Accused on 20/8/2013 at about 5 PM, with an intention to marry the minor Victim, the daughter of CW-1 B. S. Venkatesh has Kidnapped her near from the Shankarnag Park, took her to the Railway Station of Yelahanka New town, thereafter taken her in the Train to his native place Gulbarga. Afterwards, on 22/8/2013 at about 8 a.m. they reached Gulbarga Station, from there both of them went to the Bus Stand and took her to Chittapura, where they stayed in the New Link Hotel and Wrongfully Confined her till Spl CC 260/2013 23/8/2013. During that time, he had Sexual Intercourse repeatedly with the Victim forcibly by using Condoms.

3. Subsequently, CW-, B. S. Venkatesh, the father of the minor Victim gave the Complaint on 21/8/2013 to Yelahanka New Town Police Station and case registered against the Accused in Crime

No. 191/2013 for the offence punishable under Section 363 IPC.

4. The Accused was arrested by the Police on 26/8/2013 and produced before the Court of Chief Metropolitan Magistrate and he was remanded to Judicial Custody.

5. Thereafter, the Investigating Officer with the permission of the Court inserted Sections 376 IPC and 4 and 6 of POCSO Act, 2012 and proceeded with the investigation. He has collected documents and recorded the Statements of the witnesses and filed Chargesheet against the Accused for the offences Spl CC 260/2013 punishable under Sections 366A, 342, 376 IPC and 4 and 6 of POCSO Act, 2012. Subsequently, the Case has been Committed to the Sessions Court and assigned to 50 th Addl.City Civil and Sessions Court. The said court has taken Cognizance of the offences as per the Chargesheet and case registered in Spl.C.C. 260/2013. Subsequently, on 4/2/2014 the Accused has granted bail.

6. The learned Presiding Officer of the said Court has framed against the Accused for the offences punishable under Sections 366, 342, 376 IPC and 5(l) R/w 6 of POCSO Act, 2012, read over and explained to the Accused and he has not pleaded guilty and claims to be tried.

7. Subsequently, the case has been transferred to this Court as per the Office Order No. ADM-I (A)-/2015 dated: 27/3/2015, for disposal in accordance with law.

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8. The Prosecution has examined 9 witnesses out of 21 witnesses as PWs 1 to 9. The documents are marked as Ex.P-1 to 9, P-1(a), 2(a)(b), 3(a)(b), 4(a), 5(a)(b), 6(a). The documents in support of Accused are marked as Ex.D-1 to D-10 and D-10(a) in the Cross-examination of PW-1. The Material Objects are marked as M.O.s 1 to 4. The CWs 2 to 4, 6, 7 to 19 and 21 are remained absent in spite of issuance of Proclamation. Therefore, the prayer of learned Special Public Prosecutor has been rejected and the evidence of Prosecution taken as closed. The Incriminating Circumstances in the evidence of the prosecution witnesses read over to the Accused under Section 313 of Cr.P.C. He has denied the entire evidence and not chosen to lead any Defence evidence on his behalf.

9. Heard, the arguments of learned Special Public Prosecutor for the State and the learned Counsel for the Accused on merits.

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10. The points for my consideration are :

1. Whether the Prosecution proves that the Accused with an intention to marry the minor Victim CW-7, daughter of CW-1 has Kidnapped her on 20/8/2013 from the place A-Sector near Shankar Nag Park, taken her to his native place Gulbarga in the Train, thereafter to Chittapura and Wrongfully Confined her in the New Link Hotel?

2. Whether the Prosecution proves that the Accused after Wrongfully Confining her in the said Hotel had forcibly committed Rape and repeatedly Aggravated Penetrative Sexual Assault on her for 3-4 times?

3. Whether the Prosecution proves that the Accused has committed the offences punishable under Sections 366, 376 IPC and 5(l) R/w 6 of POCSO Act, 2012?

4. What Order?

11. My findings on the above points are as under:-

Point No.1 : In the Negative

Point No.2 : In the Negative

Point No.3 : In the Negative

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Point No.4 As per final order
for the following

REASONS

12. Point Nos. 1 to 3: The Prosecution has relied on

the evidence of PWs 1 to 9, to prove the Kidnap of minor Victim by the Accused on 20/8/2013, who was said to be taken her to Gulbarga and Chittapura, forcibly committed Rape after Wrongfully confining her in the New Link Hotel at Chittapura and also committed Aggravated Penetrative Sexual Assault repeatedly.

13. The Victim who was aged about 17 years as on the date of her examination as PW-1 initially in the Chief-examination supported the case of the Prosecution. In further Chief-Examination she has stated about when going to School as she was studying 9th Standard during 2011 at Sheshadripuram High School, the Accused used to supply water in her area and talked with her and also forced her to love him. Though the Accused was forcing her to love him, she Spl CC 260/2013 had refused to accept his love. In spite of that, he used to torture her while going to school, by pulling her School bag, which was disclosed with her friend. However, her parents also said to be warned the Accused not to cause any harassment to their daughter, But, he was continued the similar act. Therefore, her parents gave Complaint to the Yelahanka Police Station where the Police called him and warned not to commit such type of act in future. However, the Accused again tortured her when she was going to the school, thereafter to the College, saying that he will die, if she did not love him. Therefore, after his friends convinced her near Bus Stop, she had accepted the love of Accused due to fear he may die, if she refused to love him.

14. The alleged incident of Kidnap of minor Victim, had taken place in the month of August 2013, when the Accused told her that his mother is suffering from Blood Cancer and she has intended to see him and also the Victim, therefore he asked the Victim to come to his native place Gulbarga. Afterwards, the Victim herself Spl CC 260/2013 went with Accused to Gulbarga in the Train at 5 P.M. on 20/8/2013. They reached Gulbarga at 7 A.M. and stayed at New Link Lodge for 2 days where the Accused said to be committed Rape on her by using Condoms.

15. Further she has stated that on 23/8/2018 the Accused took her to Thandoor on the assurance that he will allow to talk with her parents over phone. However when both of them went to Thandoor, the Accused had kept his two mobiles in the lodge at Thandoor itself. She called her mother over phone of public Coin Booth at Thandoor and informed that she was very well, by that time phone was disconnected in the middle. Afterwards, when they were waiting in the Railway station, Thandoor Police caught hold them and taken to the local Police Station. By that time, her father given Complaint. She has identified the Mahazar Ex.P-5 conducted by the Police at Hotel in Chittapura, but it was not signed by her. She has identified the Mobile, Railway Ticket and SIM cards of the Mobiles are marked as Mos 1 to 4.

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16. She has particularly stated about threat caused by the Accused as he will Kidnap her brother and spoil her family members, and also he already had many friends at Jail. He was also asked her to give Statement before the Magistrate as informed by him, therefore, she gave Statement similarly as per his instructions.

17. The Mahazar conducted in front of the Shankarnag Park at Yelahanka is marked as Ex.P-6 and her signature is marked as Ex.P-6(a) The Police said to be took her signature on the blank papers and a typed blank Form, which are her Marriage Certificate issued by the Sub-Registrar. She has further stated that in the month of August 2016, the Accused came with 15-20 people when she was alone at home and pulled her, snatched her Mobile, when she tried to inform her father and it was damaged. Afterwards, the Accused beaten her, on the same day, her father gave Complaint. The certified copies of the FIR and Complaint are identified and marked as Ex.P-7 and 8. However, the allegations made against him are only Spl CC 260/2013 with regard to trespass, pulled her hand, abused in filthy language and also threat caused to her.

18. In the Cross-examination, she has clearly stated the Mobile number of the Accused not given to her parents and denied she was talking with Accused since 2012 to 2016, she contacted him through Bharadwaj, who is not alive. She has admitted that the Accused was supplying water in Yelahanka, where she was residing and forcing her to love him from six months when she was studying in 9th standard. She has also stated about the Accused forced her to love him by pulling her bag. Admittedly she went to Shankarnag Park with Accused, where, he was Wrongfully Restrained her for 4 hours. During that period, she was going to College and studying in PUC at Sheshadripuram College. According to her, she was going to the said College in BMTC bus. She has stated that the Accused used to threatening her that he is going to die, if she did not love him.

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19. It is elicited from her further Cross-examination that the Accused had forcibly Raped her in the Lodge and also during the month of December 2016, she told her parents about the Register Marriage of her with the Accused. The Photographs of her with Accused exchanging Garlands, tying Thali with the mother of Accused marked as Ex.D-1 to 9. She has also admitted her signature in the Certificate of Registration of Hindu Marriage as per Ex.P-10 is marked as Ex.P-10(a). The Signature of Accused also found with their pair photograph affixed to the said Certificate.

20. Though she has stated about Music Class joined by her on 18/8/2013, no documents produced before the Court. Likewise she has alleged that the Accused has brainwashed her but at the same time, she herself accompanied him to Gulbarga and Chittapura in the Train. She has affirmed that in the month of August 2013, Accused took her to Gulbarga by saying the his mother was suffering from Blood Cancer, therefore wanted to see her and her mother also intended to see Spl CC 260/2013 her, on the same day, she joined the Music Class. Therefore, as the Accused forced her, she shown pity and went with him.

21. She has specifically stated that the Accused has committed Rape, on her when they were stayed at New Link Lodge at Chittapura. She has further stated the seizure of three Condoms from the said Hotel, which were alleged to be used by the Accused while committing Rape on her. However, the said Condoms are not produced before the Court. She has also stated the presence of Owner and Clerk of the Lodge at the time of Seizure Mahazar conducted as per Ex.P-5.

22. Further, the Mahazar drawn under Ex.P-6 at Shankarnag Park signed by her, but not able to say the names of Panchas who were present at the Spot. However, she has categorically admitted that initially on 5/6/2014, she has deposed in support of the Accused. But, and denied in order to break her Legal Marriage with the Accused, false Complaint given against him.

Spl CC 260/2013 However, she has disclosed the Register marriage of her with the Accused to her parents. She has denied that she herself voluntarily married the Accused, thereafter their marriage was Registered in the office of the Sub- Registrar at Yelahanka.

23. The mother of the Victim Smt. Chandrika is examined as PW-2. She has stated that on 20/8/2013 the Victim went from the house to attend Music Class and not returned to home. Therefore, they gave Complaint on 21/8/2013. Subsequently, on 23/8/2013 she had received a call from the Victim and it was disconnected in the middle. Therefore, she went to Police Station and shown the said call and the Police traced out the Call from Thandoor Village of Hyderabad. On the same day she along with her husband and Police went to Thandoor where identified both the Accused and her daughter. After enquiry with them, they made known the bags were kept in New Link Hotel at Chittapura of Gulbarga, therefore went to the said Hotel. In the said hotel, in the room, where both Spl CC 260/2013 of them stayed, the Mobile and the Train Tickets were found which were seized by the Police, same are identified as MOs 1 and 2. However, after verifying the Victim she made known that the Accused forcibly took her to his Native place and committed Rape on her.

24. In the Cross-examination, she has admitted that she was aware about the friendship of the Victim and Accused as on 19/8/2013 itself. She has admitted that one Bharadwaj is her relative, used to visit her house frequently at PWD quarters of Yelahanka. According to her, the date of Birth of Victim is 12/5/1997 and her Date of Birth certificate was obtained when they were staying at Bellary.

25. The father of the Victim Venkatesh is examined as PW-3. He has stated that the Victim was aged about 17 years, when he gave Complaint to the Police Station on 21/8/2013. He has stated that on 20/8/2013, Victim went out of the house to attend Music Class. Thereafter, she found missing as did not return to Spl CC 260/2013 house, therefore, after searching her in the houses of friends and relatives, he gave Complaint to the police on 21/8/2013. He has stated that the call received from the Public telephone booth to the Mobile of his wife PW-2 on 23/8/2013, from which, heard "Amma, Amma". After disconnection of the said call, they went to Yelahanka Police Station and shown the phone number, the Police after verification found that it was from Thandoor village of Andhra Pradesh. Immediately he along with his wife and Police went to Thandoor, where saw the Accused and the Victim. Afterwards, they were taken to Lodge at Chittapura, Gulbarga District, where the Victim informed that the Accused kept her in the said Lodge for 3 days and forcibly committed Rape on her on the assuance of marrying her. He has specifically stated that since the Accused was prior to the incident harassing the Victim when she was going to college, he gave Complaint to the Police against him.

26. In the Cross-examination, he has admitted that he came to know about the friendship of Accused and Spl CC 260/2013 Victim prior to one month from the date of giving Complaint. He has further stated that due to phone calls made to the Mobile of his wife came to know that the Victim and Accused were friendly moving with each other, afterwards, he called both of them and advised. But the Accused has continued contacting the Victim through phone. He has further stated that the Complaint given against the Accused on 21/8/2013 for the first time and further stated about 2 Mobile numbers, from which, his wife getting calls to her mobile. According to him, when the Victim returned to Bengaluru, she brought a dairy and a pair of dress. He has also stated the Date of Birth of his daughter as 12/5/1997 and she was born at Bellary.

27. The Dr. B.M.Nagaraju is examined as PW-4. He has examined the Victim on 25/8/2013 and found no external injuries on her body. He has estimated her age from 16 to 17 years. He has conducted her local and Genital examination and found Hymen was intact. The Spl CC 260/2013 Medical Report issued as per Ex.P-1 and his signature is marked as Ex.P-2(a).

28. He has further examined the Accused on the same day and issued Medical Report as per Ex.P-3 and his signature is marked as Ex.P-3(a). According to his opinion given after examining the Victim that she was not involved in Sexual intercourse prior to four days of her examination. Likewise, as per the Statement given by the Accused during his examination, though he had taken the Victim to his Native place, there was no physical relationship between them.

29. Dr. Umadevi is examined as PW-5. She has issued the Age Estimation Certificate of the Victim is marked as Ex.P-4 and her signature as Ex.P-4(a). The said Certificate issued by her on the basis of

the SSLC Marks Card of the Victim.

30. The witness Srinivasa is examined as PW-6. He has identified his signature in the Spot Mahazar Spl CC 260/2013 Ex.P-6 is marked as Ex.P-6(a). According to him, the Police have conducted Mahazar in his presence at the Spot shown by a girl saying that a boy kidnapped her from that place. But he has not able to say the names of both of them. He has dyergwe admitted the signature put to the said Mahazar in the Police Station.

31. The witness Khajamia is examined as PW-7. He is the owner of the New Link Hotel at Chittapura where the Accused stayed with a girl for one day night. He has identified the Accused before the Court and stated he along with a girl stayed there, on the next day, he locked the room and handed over the key to the Owner. He has further stated that the Police visited the said Hotel, verified the room and drawn Mahazar as per Ex.P-5, after seizing the Mobile and Candoms. He has identified his signature in the Mahazar is marked as Ex.P-5(a), the Mobile with 2 SIM cards were marked as MO1, 3 and 4.

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32. In the Cross-examination, he has admitted not produced any documents to show that the Accused stayed in New Link Hotel, though admitted Register maintained in the said Lodge. He has also admitted no documents given to the Police in proof of Accused and Victim stayed in a room for one day in the said Lodge. He do not know the contents of the Mahazar drawn at Ex.P-5 and also not able to say who were all present during the said Mahazar. He has shown ignorance about the Mobile seized by the police at the same time of drawing Mahazar as police did not disclose anything about the Mobile of the Accused.

33. The Police Inspector Mr. M.S. Ashok is examined as PW-8. He has identified the Accused before the Court and Age Estimation Certificate of the Victim obtained under Ex.P-4. He has also identified the Medical Report of the Victim and Accused as per Ex.P-2 and 3 and his signatures are marked as Ex.P-2(b) and 3(b). Subsequently as he was transferred, handed over the case file to CW-21.

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34. In the Cross-examination, he has admitted that not verified about Mobile number 8411274554 and also from which phone number, the Victim called to the said number. He has also not obtained any Call details from the Nodle Officer. He has denied that on 23/8/2013, both the Victim and the Accused voluntarily came to the Police Station. However, admitted that from 20/8/2013 to 23/8/2013. Accused was talking with the mother of the Victim through phone, therefore, the Police came to know about the place where the Victim was taken by the Accused. Admittedly the Material Objects shown in the Remand application were not seized from the Accused.

35. The Police Head Constable Mr. Puttaraju is examined as PW-9. He has stated that on 23/8/2013 he along with other officials went to Andra Pradesh on the information that the Accused and the Victim were at Thandoor village. He along with other staff and parents of the Victim went to

Hyderabad thereafter joined ASI Muniramaiah as he had been there in different case and Spl CC 260/2013 visited Thandoor village Police Station and saw the Victim and Accused. The parents of the Victim also identified both of them. Afterwards, they took both of them and came to New Link Hotel at Chittapura, where they stayed in a room and conducted Mahazar after seizing the Mobiles and Railway Ticket and 3 Condoms in the presence of owner and driver Rajesh of Innova Car. The Accused himself has identified the said Mobile belonging to him and the same were marked as MO's 1 to 4. It is made out that since Condoms were not shown to him in the Court, he could not be able to identify the Condoms said to be seized under the same Mahazar. He has identified his Signature in the Mahazar is marked as Ex.P-5(b). The receipt seized from the Hotel is marked as Ex.P-9. Afterwards the Accused and Victim were produced before the Police Inspector at Bengaluru.

36. In the Cross-examination, he has denied the Mahazar said to be drawn at New Link Hotel has been fabricated against the Accused in support of the false Complaint. He has admitted that information should be Spl CC 260/2013 given to ACP whenever deputed on duty to different States, but he has not either given information to ACP or Reported the same after returning from Andhra Pradesh. Though he has stated the Condoms were kept in a paper, same has not been produced before the Court. He has also admitted that Accused or Victim were produced before the Court of Magistrates at Thandoor or Chittapura.

37. The Learned Special Public Prosecutor has submitted that the Accused has Kidnapped the minor Victim without her consent, who is aged below 18 years and pointed out the definition of Sections 361 and 366 of IPC. Further pointed out two railway tickets are produced as per MO2 discloses that she was taken to Chittapura on 21/8/2013 spent night in the Lodge with him. In this regard pointed out the evidence of owner of the Lodge who is examined as PW-7. Further the inducement made by the Accused on Victim at the age of 14 years and brainwashed her saying that her mother was suffering from Cancer, took her to his native place.

Spl CC 260/2013 There was no enmity between the witness PW-7 and the Accused and no necessity for him to identify the Accused who stayed in the Hotel along with Victim.

38. It is submitted that the age of the Victim was below 18 years and her evidence supports Kidnap by the Accused and also Mahazar drawn at the Hotel, where he kept after Kidnapping from Bengaluru in the Train, which is supported by two Railway Tickets produced before the Court. Further pointed out the mother of the Victim also supported the case of Prosecution, which is Corroborated the evidence of Victim. The definition of Man and Woman under Section 10 of Cr.P.C. also brought to the notice of the Court.

39. In support of the said arguments has relied on the following Rulings:

- 1) 2019(2) Crimes 123 (Tripura) in the case of Pramannik Dey Vs. State of Tripura.

Spl CC 260/2013 The Important Points discussed by Hon'ble High Court of Tripura are (1) Crime against woman and more so of Sexual Assault, Statement of Prosecutrix is to be considered as that of any other witness not an accomplice to Crime and (2) In context of Indian Culture, a woman-

Victim of Sexual Aggression, would rather suffer silently than falsely implicate some one for a Statement of Rape Extremely humiliating experience for a woman unless she is a Victim of Sexual Assault she would ordinarily not blame any one for alleged Crime.

2) 2019(1) Crimes 409(Bombay) in the case of Sridhar Kalu Gatar Vs. State of Maharashtra.

The Important Point discussed by Hon'ble High Court of Bombay is in order to make out the offence punishable under Section 376 IPC as well as Section 4 of the POCSO Act, 2012 , complete Penetration is not required. Slightest Penetration is sufficient to constitute the offence.

3) 2019(3) Crimes 655(Uttarakhand) in the case of Sajid Vs. State of Uttarakhand.

Spl CC 260/2013 The Important Point discussed by Hon'ble High Court of Uttarakhand is when there is contradiction between Medical evidence and Ocular evidence, primacy has to be given to Ocular evidence.

40. The Certified Copy of the Judgment passed in M.C.No. 5467/2016 filed by the Victim against Accused for Dissolution of marriage under Section 12(1)(c) of Hindu Marriage Act. The said Petition was allowed on 26/2/2018 by declaring the marriage solemnized between the Accused and the Victim on 18/12/2015 and registered before the Registrar of Marriages, Yelahanka on 19/12/2015 as Null and Void.

41. However, the learned Counsel for Accused has submitted the arguments about lacunas found in the case of Prosecution. The submission made false story concocted against the Accused who was produced before the Court on 26/8/2013 though he was apprehended on 24/8/2013, brought to Bengaluru on 25/8/2013. The Medical Report says no Sexual Spl CC 260/2013 Intercourse between the Accused and the Victim. The relevant column of history mentioned in the said Report shows no complaints of mis-behaviour by the Accused, when she was taken to Chittapura. Further pointed out the opinion of Doctor as Victim was not used for any act of Sexual Intercourse or Sexual Assault. The evidence of the Victim at relevant paras pointed out relates to different versions elicited in the Cross-examination. The contrary Statement given by the Victim by admitting the Statement given before Doctor and again denied the same in her Cross-examination subsequently, dis-proves the Kidnap by the Accused forcibly. The Mahazar said to be drawn in presence of both of them as per Ex.P-5 is not signed by the Victim , but signed by the Accused. Therefore, leads to suspicion regarding Mahazar drawn as per Ex.P-5.

42. The Learned Counsel for the Accused has brought to the notice of the Court about the Opinion of the doctor given after examining the Victim on 25/8/2013 as per Ex.P-2 and pointed out the column of Spl CC 260/2013 history and also Victim was not used for any act of Sexual Intercourse of Sexual Assault.

43. Further the important portions of evidence elicited in the Cross-examination of the Victim at relevant paras to prove different version taken by her, for not giving Complaint against him prior to the present alleged incident when the Accused said to be harassed her.

44. The learned Counsel further pointed out how the offence of Kidnap under Section 366 will not attract as Victim herself went to Gulbarga with the Accused in a Train and soon after reaching there she called her mother over phone. Further no Statement of Victim under Section 164 Cr.P.C. got recorded through the concerned Magistrate. The inconsistencies in the evidence of mother of the Victim and also witnesses for Mahazar brought to the notice of the Court to disprove the alleged incident and also Mahazar said to be Spl CC 260/2013 conducted at the spot as well as Hotel where the alleged Rape committed by the Accused on the Victim.

45. In support of the arguments, relied on the following Rulings:

1) 2015 7 SCC 364 in the case of State of Karnataka Vs. F. Nataraj The Hon'ble Supreme Court of India has discussed about the inconsistent Statement of the Prosecutrix made before the Police denying the incident, thereafter before the Court given Statement seem to be tuted. The Statement of the Prosecutrix recorded at the age of 17 years and it is quite natural for a girl of that age to know as to what is "Sexual Intercourse." The fact that the Prosecutrix did not raise any alarm when the Accused tried to Kidnap her, seems to be quite natural. The testimony of the Prosecutrix when read as a whole is full of discrepancies and does not inspire confidence.

Further discussed on Medical evidence, which goes against the testimony of the Victim to convict the Accused. The Medical examiner has merely mentioned that there were no signs of recent Sexual Intercourse which is inadequate to establish that Sexual Intercourse took place before that at all.

On the above said grounds opined as Accused is entitled for benefit of doubt.

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2) 2015 7 SCC 272 in the case of Md. Ali Vs. State of Uttara Pradesh in Criminal Appeal Nos. 2238/2010, 636 of 2012 and Criminal Appeal Nos 428/2015 (Arising out of SLP(Crl.) No. 9896/2011) The Hon'ble Supreme Court has discussed on the evidence deposited by Prosecutrix that she along with Accused remained for two months, she was taken from one place to another place and she was ravished number of times. Under such Circumstances, the Medical evidence gains significance, the Doctor who has examined her deposed that there are no injuries on the private part, doubt certainly arose to believe the testimony of the Prosecutrix.

3) 2019(1) AKR 369 in the case of Prem Kumar Vs State of Karnataka The discussions made in this case regarding Charge of Rape under Section 376 IPC, the appreciation of evidence of Prosecutrix who has stated about Sexual Assault on her by the Accused, which was not supported by the Medical evidence and none of the witnesses saw both of them, guilt of the Accused not established by producing the clinching evidence.

In the relevant paras elaborate discussions made on the important circumstances and age of the girl also 16 years 6 months, who has stated in Examination in Chief, which shows semblance of consent

and her evidence lacks credit worthiness.

46. I have perused the observations made in the above Rulings cited for Prosecution and Defence of Spl CC 260/2013 the Accused. The important point is the evidence of Victim is silent about the ingredients of Kidnap and Rape as required under Sections 366 or 376 IPC. I do not find any proof of allegations of Aggravated Penetrative Sexual Assault committed by the Accused has no oral evidence of Victim herself is produced before the Court. It is true though the Victim has stated that the Accused had forcibly taken her to Gulbarga, she has categorically admitted that she herself voluntarily went with the Accused, when he was alleged to be said that his mother was suffering from Cancer and going to die shortly. She intended to see her mother and his mother also wants to see her.

47. Another important point made out from the Medical Report Ex.P-2, no signs of recent Sexual Intercourse found on her, when she was examined by the Doctor on 25/8/2013. Therefore, it can be said that the allegation made against Accused that during her stay with him in New Link Hotel, he had committed Sexual Intercourse forcibly on her by using Condoms Spl CC 260/2013 cannot be accepted. The witnesses including the Victim and her parents stated about seizure of Condoms from the said Hotel said to be used by Accused while committing Rape on her are not produced before Court, though said to be seized under Seizure Mahazar.

48. The photographs taken by her with Accused and his mother are admitted in the Cross-examination of Victim are marked as Ex.D-1 to 9, in which, she seems to be very happy in the company of Accused. However, she has further admitted her Signature in the Marriage Certificate Ex. D-10, marked as Ex.P10(a) and after the Registration of her Marriage with the Accused, she herself informed the same to her parents subsequently. Moreover, the Accused used to talk with the mother of the Victim since 21/8/2013 to 23/8/2013, when the Victim was alleged to be Kidnapped by him and taken to Gulbarga, at the same time the Accused was made known about the Victim was with him. Therefore, there cannot be any act of Kidnap of the Victim as required under Section 366 IPC.

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49. Further, the Prosecution in proof of Kidnap of the Victim by the Accused relied on MO-2, the Railway Ticket, which shows the booking of Ticket from Yelahanka Junction to Gulbarga. In the said Ticket the age of male person shown as 21 years and the age of female as 18 years. The Date of Journey was 20/8/2013 and the Ticket was booked on 19/8/2013. Therefore, as the Ticket was booked to Gulbarga in advance to both male and female, who are none other than the Accused and Victim clearly establish that the Victim has voluntarily accompanied the Accused as she was aware of the Tickets booked on the previous day, that is on 19/8/2013 to go to Gulbarga, afterwards she found missed from 20/8/2013.

50. I have gone through the observations made in the Rulings produced on behalf of the Prosecution case. It is made out that Conviction can be based on sole Testimony of Prosecutrix without Corroboration, if otherwise the Court has satisfied and convinced with regard to veracity of her

deposition.

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51. Further the age of the Victim girl was proved by Birth certificate issued by the Registrar of Births and Deaths is she was below the age of 12 years of age her evidence was trustworthy and believed as her mother also stated the same in Corroboration with evidence of Victim.

52. The Statement of the Victim given under Section 164 Cr.P.C. also taken into consideration when there is contradictions between the Medical evidence and Ocular evidence, Primacy is to be given to Ocular evidence, as no reason to disbelieve the Testimony of Prosecutrix.

53. However, the above Principles of the Rulings cited for Prosecution can be considered only when there is Trustworthiness found in the evidence of Victim and Corroborated with evidence of her mother. But in the present case, the Accused in contact with the mother of Victim as he used to call her continuously for 3 days from 20/8/2013 to 23/8/2013, during that period Spl CC 260/2013 he was alleged to be Kidnaped the Victim to his native place. Further the Victim herself voluntarily went with the Accused to Gulbarga by booking the ticket in advance on 19/8/2013 itself as could be seen from MO-2, the Railway ticket. Further the important evidence madeout is Medical Report relating to the Victim issued by the Doctor as per Ex.P-2 is silent about the act of Sexual Intercourse forcibly on her alleged to be committed by the Accused.

54. Further the Investigating Officer has not made any request to the concerned Magistrate, soon after she was said to be brought from Thandoor Village to Bengaluru on 25/8/2013, to record the Statement of the Victim under Section 164 Cr.P.C. No explanation is offered by the Investigating Officer for not requesting the concerned Magistrate to record her Statement under Section 164 Cr.P.C.

55. The learned Special Public Prosecutor has submitted that the Date of Birth of the Victim is Spl CC 260/2013 12/5/1997, she was below the age of 18 years, the Accused made her to travel in the Train supports the ingredients of Kidnap. Afterwards the Accused had forcibly Raped the Victim against her will, when they stayed at Hotel attracts the offence of Aggravated Penetrative Sexual Assault repeatedly as per Section 6 of POCSO Act, 2012 .

56. The observation made in the Rulings relied on by the learned Counsel for the Accused are with regard to the Solitary evidence of the Prosecutrix in absence of any Corroboration by Medical evidence, cannot be relied on and the benefit of doubt must be given to the Accused. Further the Testimony of Prosecutrix in proof of Kidnap and Rape is unimpeachable and beyond reproach, conviction cannot be based.

57. After going through the evidence of Prosecution witnesses with documents produced before the Court, I am of the view that they are not Spl CC 260/2013 supported and corroborated each other, as no Trustworthiness of evidence placed in proof of the allegations of Kidnap, Rape and Aggravated Penetrative Sexual Assault committed by the Accused on the Minor Victim. Though the Victim was

said to be below the age of 18 years as her Date of Birth shown as 12/5/1997 in the document issued by the Principal of PU College, Yelahanka marked as Ex.P-4. The said Certificate was issued by the Principal only on the basis of the SSLC Marks Card of the Victim. In order to prove the Date of Birth of the Victim, no other document is produced, particularly, the Birth Certificate issued by the Registrar of Birth and Deaths.

58. It is true the Crime against the women or girl cannot be taken lightly, that too, when the girl is minor below the age of 18 years. But the evidence deposed by Victim should be trustworthy and believable cannot lead any suspicion as to the alleged Crime committed against her. At the same time, it is to be verified that any information given to the parents of Spl CC 260/2013 the minor after alleged Kidnap as well as the age of the Accused also. However, the Dissolution of the marriage took between the Accused and the Victim, cannot give scope for convicting the Accused. Because, the said order passed in M.C.5467/2016 by the III Additional Principal Judge, Bengaluru , in the absence of Accused as he remained absent, placed exparte. Moreover the said order is no way binding on this Court and also cannot be taken into consideration, on the ground the allegations made against the Accused are Kidnap and Rape punishable under Sections 366 and 376 IPC.

59. Further it is made out from the evidence of Victim that she herself called her mother from Gulbarga and made known that she was with the Accused in the Hotel. Therefore the alleged Wrongful confinement of the Victim by the Accused in the New Link Hotel at Chittapura cannot be accepted. Because if really she was wrongfully confined by the Accused, she should not have talked with her mother during stayed with the Accused in the said Hotel. For the said reason, it can be Spl CC 260/2013 said that no proof of wrongful confinement of the Victim as alleged against the Accused.

60. Therefore, after careful scrutiny of the entire oral and documentary evidence along with dictum of law rendered by Hon'ble Supreme Court of India and Hon'ble High Court of Karnataka, I come to the conclusion that the Prosecution has failed to prove that the Accused with an intention to marry the minor Victim Kidnapped her on 20/8/2013, taken to Gulbarga and to Chittapura, after Wrongfully confining her in the New Link Hotel forcibly committed Rape and Aggravated Penetrative Sexual Assault punishable under Sections 366, 342, 376 IPC and 5(l) R/W 6 of POCSO Act, 2012. Hence, I answer points No.1 to 3 in the Negative .

61. Point No.4: In the result, I proceed to pass the following:

Spl CC 260/2013 ORDER Acting under Section 235(1) of Cr.P.C.

Accused Sayabanna @ Sabi S/o Late Ninganna is hereby acquitted for offences under Section 366, 342, 376 of IPC and Sections 5(l) R/w 6 of POCSO Act, 2012.

The bail bonds executed by the Accused and surety under Section 437 (A) Cr.P.C. shall be in force till the completion of Appeal period.

The Material objects No1 to 4 and other properties seized by the Police shown under PF are ordered to be destroyed as worthless after completion of Appeal period.

(Dictated to the Judgement writer, transcript and computerized by her, corrected, signed and then pronounced by me in the open Court today on 4th day of January, 2020.) (S.H.PUSHPANJALI DEVI) LIII Addl.City Civil & Sessions Special Judge, Bangalore.

Spl CC 260/2013 ANNEXURE

1) List of witnesses examined for the Prosecution PW.1 Victim PW.2 Smt. Chandrika PW.3 Venkatesh PW.4 Dr. B.M.Nagaraju PW.5 Dr. N. Umadevi PW.6 Srinivas PW.7 Khajamia PW.8 Ashok M.S. PW.9 Puttaraju

2) List of documents marked for the Prosecution Ex.P1 Complaint Ex.P1(a) Signature of PW-3 Ex.P2 Medical Report of Victim Ex.P2(a) Signature of PW-4 Ex.P2(b) Signature of PW-

Ex.P3 Medical Certificate of Accused Ex.P-3(a) Signature of Pw-4 Ex.P4 Age Certificate Ex.P4(a) Signature of PW-5 Ex.P5 Mahazar Spl CC 260/2013 Ex.P5(a) Signature of PW-7 Ex.P5(b) Signature of PW-9 Ex.P6 Spot Mahazar Ex.P6(a) Signature of PW-1 Ex.P7 True Copy of FIR Ex.P8 True Copy of Complaint Ex.P8(a) Signature of PW-7 Ex.P9 Receipt of New Link Hotel

3) List of Material Objects marked for the Prosecution MO.1 Mobile MO.2 Railway Ticket MO.3 SIM Card of Vodaphone MO.4 SIM Card of Airtel

4) List of witnesses examined for the Accused Nil

5) List of documents marked for the Accused Ex.D-1 Photos to 9 Ex.D-10 Marriage Certificate of Accused and Victim Ex. D-10 (a) Signature of PW-1.

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6) List of Material Objects marked for the Accused Nil (S.H.PUSHPANJALI DEVI) LIII Addl.City Civil & Sessions Special Judge, Bangalore.

*** Spl CC 260/2013 Accused is present.

Judgment pronounced in the open court, (vide separate Judgment) ORDER Acting under Section 235(1) of Cr.P.C.

Accused Sayabanna @ Sabi S/o Late Ninganna is hereby acquitted for offences under Section 366, 342, 376 of IPC and Sections 5(l) R/w 6 of POCSO Act, 2012.

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(S.H.PUSHPANJALI DEVI) LIII Addl.City Civil & Sessions Special Judge, Bangalore.